

**LAW & MOTION CALENDAR
TENTATIVE RULINGS**

June 11, 2026

**Judge R. Shawn Nelson
Department C10**

Department C10 hears law and motion on Thursdays at 10:00 a.m. and 1:30 p.m.

Court reporters: Official court reporters are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth in the Privately Retained Court Reporter Policy on the court's website at www.occourts.org.

Tentative rulings: The court endeavors to post tentative rulings on the court's website by 9:00 a.m. the day of the hearing. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5210. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Appearances and public access: Appearances, whether in person or remote, must comply with Civil Procedure Code section 367.75, California Rule of Court 3.672, Orange County Superior Court Local Rule 375, and Orange County Superior Court Appearance Procedure and Information—Civil Unlimited and Complex (pub. 9/9/22).

Unless the court orders otherwise, remote appearances will be conducted via Zoom. All counsel and self-represented parties appearing via Zoom must check in through the court's civil remote appearance website before the hearing begins. Check-in instructions are available on the court's website.

The public may attend hearings by coming to court or via remote access as described above.

Photographing, filming, recording, and/or broadcasting court proceedings are prohibited unless authorized pursuant to California Rule of Court 1.150 or Orange County Superior Court Local Rule 180.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling.

NO.	CASE NAME	MATTER
10 a.m.		
1	Thompson v. Doan	<u>Case Management Conference</u> The Case Management Conference is continued to July 09, 2026, at 10:00 a.m. in this department. Plaintiff to give notice.

		<u>Motion to Be Relieved as Counsel of Record</u> Counsel Fortra Law through Jacoby Perez moves to be relieved as counsel of record for Defendant Tri Minh Doan ("Client"). For the following reasons, the motion is GRANTED. The court has reviewed the materials submitted by Moving Counsel and finds that counsel has complied with the requirements of Rule 3.1362. The clerk is ordered to update the proposed order to reflect the following changes: - Add appearances in Section 2 - In section 7(a), strike the information currently included and indicate the next scheduled hearing is set for: 07/09/2026 at 10:00 AM in Department C10, Central Justice Center, 700 W. Civic Center Dr., Santa Ana, CA 92701 - In section 7(b), modify the information currently included and indicate the hearing will also concern: Motion by Attorney John Anthony Thompson to Be Relieved as Counsel of Record The court's order shall become effective upon the filing of the proof of service of the signed order on the Client. Moving Counsel is ordered to give notice by non-electronic and electronic means to Client Tri Minh Doan and all other parties.
1:30 p.m.		
1	Okanina v. Hyundai Motor America	Defendant Hyundai Motor America's ("HMA") motion to compel arbitration and stay the action is DENIED. HMA's request for judicial notice is GRANTED. Plaintiff's Evidentiary Objections to Declarations of Jennah Feeley and Vijay Rao should be OVERRULED. [The moving party "is not required to authenticate an opposing party's signature on an arbitration agreement as a preliminary matter." (<i>Ruiz v. Moss Bros Auto Group, Inc.</i> (2014) 232 Cal.App.4th 836, 846.)] The right to arbitration depends upon contract, and thus, a motion to compel arbitration is akin to a suit in equity seeking specific performance of that contract. (See <i>Little v. Pullman</i> (2013) 219 Cal.App.4th 558, 565.) The parties may, among other things, agree that the arbitration agreement will be controlled by the Federal Arbitration Act ("FAA"), which includes both procedural and substantive provisions. (See <i>Rodriguez v. American Technologies, Inc.</i> (2006) 136 Cal.App.4th 1110, 1122.) The Federal Arbitration Act governs here as the Warranty Arbitration Provision expressly provides that it "shall be governed by the Federal Arbitration Act, 9 U.S.C. §§ 1-16." (Feeley Decl., Exh. 2 [Warranty] at p. 14.) Accordingly, the FAA applies. The FAA states that written arbitration agreements "shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or